

TENTATIVE RULING

Case: **Ghavamzadeh v. Lock**
Case No. CV2025-2216

Hearing Date: **January 29, 2026** **Department Fourteen** **9:00 a.m.**

On the Court's own motion, defendants Norcal Gold, Inc. and Tracy Harris' demurrer to plaintiff Vesta Ghavamzadeh, as Trustee of The Olivia & Elliot Trust's complaint is **CONTINUED** to **March 26, 2026**, at 9:00 a.m. in Department Fourteen. The Court finds that the meet and confer process was insufficient. (Code Civ. Proc., § 430.41, subd. (a)(4); Corsaut decl., ¶¶ 2-3; Panagotacos decl., ¶¶ 6-15, Exhibits A & B.)

By **February 17, 2026**, the parties are **DIRECTED** to meet and confer, in person, by telephone, or by video conference, regarding the issues raised in defendants' demurrer. (Code Civ. Proc., § 430.41; *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355, fn. 7 ["trial courts are not required to ignore defects in the meet and confer process" and retain the "discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort"].)

By **March 6, 2026**, defendants **SHALL** file and serve a declaration regarding the parties' meet and confer efforts and identify the remaining issues for the Court's determination.

By **March 13, 2026**, plaintiff **SHALL** file and serve a responsive declaration.

If there are no remaining issues, defendants are **DIRECTED** to request that the March 26, 2026, hearing be vacated.

TENTATIVE RULING

Case: **Lama v. Orion Aesthetics Corp. et al.**
Case No. CV2023-1945

Hearing Date: **January 29, 2026** **Department Eleven** **9:00 a.m.**

Defendant Hartej Uppal, M.D., FACP’s request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, 453; *People v. Williams* (1959) 174 Cal.App.2d 364, 390.) However, the Court does not take judicial notice of the truth of the contents in Exhibit B. (*Herrera v. Deutsche Bank National Trust Co.* (2011) 196 Cal.App.4th 1366, 1375.) Accordingly, plaintiff Iswor Lama, individually and as personal representative of the Estate of Dolmaya Thogra, decedent’s objection to defendant’s request for judicial notice is **OVERRULED**.

Defendant’s objections to declaration of Shaun Carstairs, MD, FACMT, FACEP are **OVERRULED**. (Evid. Code, §§ 720, 801; *Jennings v. Palomar Pomerado Health Systems, Inc.* (2003) 114 Cal.App.4th 1108, 1116–1117; *Bushling v. Fremont Medical Center* (2004) 117 Cal.App.4th 493, 510; see also Carstairs decl., ¶¶ 9-10.)

Defendant’s motion for summary adjudication as to issue nos. 1 and 3 is **DENIED**. (Code Civ. Proc., § 437c, subd. (p)(2).) Defendant met his initial burden by showing that plaintiff cannot establish an element of his wrongful death and negligence cause of actions: breach of the applicable standard of care. (*Ibid.*; *Burgess v. Superior Court* (1992) 2 Cal.4th 1064, 1077; *Lattimore v. Dickey* (2015) 239 Cal.App.4th 959, 968; *Munro v. Regents of University of California* (1989) 215 Cal.App.3d 977, 984–985 [“When a defendant moves for summary judgment and supports his motion with expert declarations that his conduct fell within the community standard of care, he is entitled to summary judgment unless the plaintiff comes forward with conflicting expert evidence”]; UMF 22-24.) However, upon the burden shifting to plaintiff, plaintiff has shown that a triable issue of material fact exists as to this element. (Code Civ. Proc., § 437c, subd. (p)(2); UMF 22-24.) Specifically, plaintiff’s experts opine that defendant’s medical care and treatment, rendered to decedent on January 6, 2023, fell below the standard of care. (Plaintiff’s Compendium of Evidence [“COE”], Exhibit B [“Gharavi decl.”], ¶¶ 10-11; Plaintiff’s COE, Exhibit C [“Carstairs decl.”], ¶¶ 10-11.)

Defendant’s motion for summary adjudication as to issue nos. 2 and 4 is **DENIED**. (Code Civ. Proc., § 437c, subd. (p)(2).) Defendant met his initial burden by showing that plaintiff cannot establish an element of his wrongful death and negligence cause of actions: causation. (*Ibid.*; *Burgess v. Superior Court* (1992) 2 Cal.4th 1064, 1077; *Lattimore v. Dickey* (2015) 239 Cal.App.4th 959, 968; *Jones v. Ortho Pharmaceutical Corp.* (1985) 163 Cal.App.3d 396, 402 [“The law is well settled that in a personal injury action causation must be proven within a reasonable medical probability based upon competent expert testimony”]; UMF 25-28.) However, upon the burden shifting to plaintiff, plaintiff has shown that a triable issue of material fact exists as to this element. (Code Civ. Proc., § 437c, subd. (p)(2); UMF 25-28.) Specifically, plaintiff’s expert opines that, to reasonable degree of medical probability, defendant’s medical care and treatment was a substantial factor in causing decedent’s death. (Carstairs decl., ¶¶ 10-11.)